

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GARY WRIGHT-LESLIE,

Plaintiff designates Kings County
as the place of trial

Plaintiff,

Basis of venue is
county of occurrence

-against-

THE CITY OF NEW YORK,
NYPD OFFICER ANTHONY VILLACIS and
NYPD LT. ILYA DIMANTOV,

SUMMONS

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 30, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10006

NYPD Officer Anthony Villacis: c/o NYPD 62nd Pct., 1925 Bath Ave., Brooklyn, NY 11214

NYPD Lt. Ilya Dimantov: c/o NYPD 84th Pct., 301 Gold St., Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GARY WRIGHT-LESLIE,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER ANTHONY VILLACIS and
NYPD LT. ILYA DIMANTOV,

Defendants.

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Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
4. That at all times herein mentioned, defendant NYPD Officer Anthony Villacis (Villacis) was and is a police officer employed by the NYPD.
5. That at all times herein mentioned, Villacis was acting within the course and scope of his employment with the NYPD.
6. That at all times herein mentioned, Villacis was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Lt. Ilya Dimantov (Dimantov) was a sergeant employed by the NYPD, and currently is a lieutenant employed by the NYPD.

8. That at all times herein mentioned, Dimantov was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Dimantov was acting under color of state law.

10. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about November 21, 2020, plaintiff was inside a vehicle that was stopped near the intersection of 17th Avenue and 81st Street, in Brooklyn, NY.

13. That while plaintiff was inside the aforementioned vehicle, he was approached by several NYPD officers and officials, including but not limited to Villacis and Dimantov (hereinafter referred to collectively as “the officers”), who without justification then forcibly grabbed and seized plaintiff without his permission or consent and forcibly removed plaintiff from the vehicle.

14. That the officers, without a warrant or probable cause or even reasonable suspicion to believe that plaintiff had committed or was about to commit a crime or criminal violation, then searched plaintiff and the vehicle.

15. That the officers, again without a warrant or probable cause or even reasonable suspicion to believe that plaintiff had committed or was about to commit a crime or criminal violation, then handcuffed and arrested plaintiff.

16. That the officers then forcibly detained and imprisoned plaintiff against his will at various locations, including but not limited to a police vehicle and a police precinct.

17. That during his detention and imprisonment, plaintiff remained tightly handcuffed, despite complaining that the handcuffs were too tight and were hurting him.

18. That on or about November 21, 2020, the officers then caused a criminal prosecution to be commenced against plaintiff, charging plaintiff with Penal Law 195.05, Obstructing Governmental Administration in the Second Degree.

19. That plaintiff had not committed any crime or criminal violation, and the officers did have probable cause to believe that plaintiff had committed any crime or criminal violation.

20. That in support of the prosecution, on November 21, 2020 Villacis authored a Desk Appearance Ticket, which was signed, approved, and endorsed by Dimantov, directing plaintiff to appear in Criminal Court to answer the charge brought against him.

21. That in further support of the prosecution, on November 25, 2020 Villacis authored and signed a Criminal Court Complaint, charging plaintiff with VTL 1212(B) (Stopping, Standing, or Parking in Prohibited Places), Penal Law 195.05 (Obstructing Governmental Administration in the Second Degree), and Penal Law 240.20(7) (Disorderly

Conduct).

22. That plaintiff had not committed any of the offenses charged in the Criminal Court Complaint, and Villacis knew that plaintiff had not committed any of those offenses and that there was no probable cause to charge plaintiff with any of those offenses.

23. That in further support of the prosecution of plaintiff, Villacis and Dimantov made statements about plaintiff to fellow officers and to the District Attorney that Villacis and Dimantov knew to be false.

24. That among the knowingly false statements that Villacis and Dimantov made were that a) plaintiff was illegally parked; b) plaintiff refused to produce his identification to the officers, despite multiple requests to do so; c) plaintiff refused to produce his driver's license to the officers, despite multiple requests to do so; and d) plaintiff refused to comply with a lawful order to exit his vehicle.

25. That these false statements made by Villacis and Dimantov constituted material evidence in the prosecution of plaintiff, and evidence that would likely convince a judge and/or jury that plaintiff was guilty of the offenses with which he was charged.

26. That these false statements made by Villacis and Dimantov caused plaintiff to be deprived of his liberty, in that plaintiff was required to appear in court on multiple occasions to answer the charges against him and was restricted in his travel.

27. That the actions of Villacis, Dimantov, and the other NYPD officers were intentional and malicious in nature.

28. That at all times referenced herein, Villacis, Dimantov, and the other officers observed the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, and deliberately and intentionally

failed and refused to do so.

29. That on or about September 20, 2021, after having been prosecuted for nearly one year, all criminal charges against plaintiff were dismissed on the merits and the criminal prosecution terminated favorably to plaintiff.

30. That as a result of the actions of defendants herein, plaintiff suffered emotional and physical injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, suffered a deprivation of his liberty, and was otherwise damaged.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of Villacis and Dimantov and the officers constituted an assault and battery upon plaintiff, for which Villacis and Dimantov and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of Villacis and Dimantov and the officers constituted a false arrest and a false imprisonment of plaintiff, for which Villacis and Dimantov and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned actions of Villacis, Dimantov, and the officers constituted a malicious prosecution of plaintiff, for which Villacis and Dimantov and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST VILLACIS and DIMANTOV
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of Villacis and Dimantov in assaulting and battering, searching and seizing plaintiff and his vehicle, falsely arresting and imprisoning, and maliciously prosecuting plaintiff constituted illegal searches and seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST VILLACIS and DIMANTOV
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by Villacis and Dimantov constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover

damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST VILLACIS and DIMANTOV
(42 USC § 1983 Claim Arising from Failure to Intervene)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforementioned actions of Villacis and Dimantov in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

43. That all of the causes of action herein fall within one or more of the exceptions of CPLR Article 16 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Villacis and Dimantov, and attorney's fees against Villacis and Dimantov pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
September 30, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 30, 2022

Edward Sivin

EDWARD SIVIN